

Court No. - 39

Case :- WRIT - C No. - 6132 of 2016

Petitioner :- Allauddin

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Dilip Gupta,J.

Hon'ble Amar Singh Chauhan,J.

The petitioner is aggrieved by the citation dated 22 December 2015 that has been issued by the Tehsildar Sadar, District Maharajganj for recovery of certain electricity dues.

It is pointed out by learned counsel for the petitioner that the electricity connection was actually disconnected on 18 November 2010 and, therefore, the petitioner cannot be required to deposit the dues.

This is a factual dispute which can be raised by the petitioner under clause 6.5 of the U.P. Electricity Supply Code, 2005.

Sri Mangla Prasad Rai, learned counsel for the Power Corporation states that in case the petitioner raises a dispute, it shall be decided in accordance with law expeditiously.

The writ petition is, accordingly, disposed of with a direction that in the event the petitioner raises a dispute regarding the electricity dues, the competent authority shall examine the same and take a decision expeditiously and preferably within a period of six weeks from today.

It is made clear that the Court has not adjudicated on the merits of

the claim of the petitioner and it will be for the authority concerned to examine the same in accordance with law.

Order Date :- 12.2.2016
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(Dilip Gupta, J.)

(Amar Singh Chauhan, J.)